

Court No. - 46

Case :- WRIT - C No. - 16245 of 2020

Petitioner :- Abhishek Kumar

Respondent :- State Of U P And Another

Counsel for Petitioner :- Pankaj Roy

Counsel for Respondent :- C.S.C.

Hon'ble Naheed Ara Moonis,J.

Hon'ble Vivek Varma,J.

Heard Shri Ram Siromani Yadav, holding brief of Shri Pankaj Roy, learned counsel for the petitioner and Shri Mahboob Ahmad, learned counsel appearing on behalf of Power Corporation.

The instant writ petition has been filed for the following relief:

"1. Issue a writ, order or direction in the nature of certiorari quashing the recovery notice dated 11.11.2019 issued by respondent No. 2.

2. Issue a writ, order or direction in the nature of mandamus commanding the respondent No. 2 to take the electricity dues of Rs. 2,85,999/- in easy installment.

3. Issue a writ order, or direction in the nature of mandamus commanding the respondent No. 2 not to take any coercive action against the petitioner in pursuance of the recovery notice dated 11.11.2019."

Learned counsel for the petitioner submits that he is ready to deposit the amount in easy installments as respondent No. 2 may fix.

Shri Mahboob Ahmad, learned counsel appearing on behalf of Power Corporation submits that petitioner should approach the Executive Engineer under clause 6.14 of the Electricity Supply Code, 2005.

In view of the statement made by Shri Mahboob Ahmad, learned counsel for Power Corporation, the present writ petition is disposed of with liberty to the petitioner to approach the Executive Engineer within a period of two weeks from today along with a representation. The Executive Engineer shall decide the representation of the petitioner by passing a speaking and reasoned order in accordance with law within four weeks thereafter.

With the aforesaid observations, the writ petition stands disposed of.

However, it is made clear that in case the petitioner does not approach the Executive Engineer within the stipulated period of two weeks, the benefit of this order shall not be extended to the petitioner.

Order Date :- 13.10.2020

Ishrat